



CHAPTER lxvii.

An Act to confer powers upon the corporation of Winchester in relation to their acquisition of the undertaking of the Winchester Electric Light and Power Company Limited and to the supply of electricity and for other purposes in connexion therewith. [18th August 1911.] A.D. 1911.

WHEREAS the city of Winchester is a municipal borough under the management and control of the mayor aldermen and citizens of the city (in this Act referred to as "the Corporation") :

And whereas under and by virtue of the Winchester Electric Lighting Order 1895 confirmed by the Electric Lighting Orders Confirmation (No. 3) Act 1895 (in this Act referred to as "the Order of 1895") the Corporation were authorised to supply electrical energy for all public and private purposes within the city as it was then constituted and to construct works for the purposes of and in connexion with such supply :

And whereas by an indenture dated the seventh day of October one thousand eight hundred and ninety-seven and made between the Corporation of the one part and the Winchester Electric Light and Power Company Limited (in this Act referred to as "the Company") of the other part all the rights duties and liabilities of the Corporation under the Order of 1895 were transferred to the Company for a period of forty-two years from the date of the said indenture :

And whereas it was provided by clause 18 of the said indenture that the Corporation should have the right at any time on giving twelve months' notice to purchase the undertaking of the Company subject to certain terms mentioned in the said indenture and that the price to be paid by the

[Ch. lxvii.] *Winchester Corporation (Electric [1 & 2 GEO. 5.] Supply) Act, 1911.*

A.D. 1911. Corporation should in default of agreement be settled by arbitration :

And whereas on the twentieth day of January one thousand nine hundred and ten the Corporation in pursuance of the said provision of the said indenture gave notice to the Company of their intention to purchase the undertaking referred to in the said indenture and arbitration proceedings were subsequently commenced for the ascertainment of the price of the said undertaking :

And whereas the Company have constructed works and are supplying electrical energy both within and without the city as constituted at the commencement of the Order of 1895 and have spent considerable sums in supplying electrical fittings in the houses of consumers :

And whereas the boundary of the city was extended by the Winchester Order 1900 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1900 :

And whereas terms have been settled between the Company and the Corporation for the sale of the whole undertaking of the Company to the Corporation and such terms are contained in an agreement whereof a copy is set forth in the Fifth Schedule to this Act and it is expedient that the said agreement should be confirmed and that the Company and the Corporation should respectively be empowered to carry the same into effect ;

And whereas it is expedient that the undertaking of the Company should be vested in the Corporation and that the Corporation should be empowered to carry on and extend the existing generating station of the Company and to supply electrical energy for all purposes within the area of supply in this Act described and to acquire property and enter into agreements for and in connexion with such supply :

And whereas it is expedient that further powers should be conferred upon the Corporation with respect to their electric lighting undertaking as in this Act provided :

And whereas it is expedient that the Corporation should be authorised to borrow money for the purchase and extension of the undertaking of the Company and for other the purposes of this Act and that further provision should be made as in this Act contained with respect to the loans and finances of the Corporation :

And whereas the purposes of this Act cannot be effected without the authority of Parliament: A.D. 1911.

And whereas an absolute majority of the whole number of the city council at a meeting held on the third day of November one thousand nine hundred and ten after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Hampshire Chronicle a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expenses in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate or out of moneys borrowed under the powers of this Act:

And whereas such resolution was published twice in the said Hampshire Chronicle and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the city council at a further special meeting held in pursuance of a similar notice on the twelfth day of January one thousand nine hundred and eleven being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

And whereas plans showing the lands authorised by this Act to be purchased compulsorily together with a book of reference containing the names of the owners and lessees or reputed owners and lessces and of the occupiers of such lands were duly deposited with the clerk of the peace for the county of Southampton and are in this Act respectively referred to as "the deposited plans and book of reference":

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

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PRELIMINARY.

1. This Act may be cited as the Winchester Corporation Short title.
(Electric Supply) Act 1911.

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A.D. 1911.
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Incorporation of Acts.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are incorporated with and form part of this Act (that is to say):—

(1) The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of subsection (1) of section 21 subsection (1) of section 23 and sections 83 and 84 of that schedule) Provided that in the application of subsection (1) of section 7 of that schedule the prescribed limit of the reserve fund shall be one fifth of the aggregate capital expenditure of the Corporation on the undertaking in lieu of one tenth of such expenditure and such capital expenditure shall be deemed to include the capital sums payable by the Corporation in respect of the transfer of the undertaking of the Company; and

(2) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845).

Interpretation.

3. In this Act the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (that is to say):—

“The city” means the city of Winchester;

“The Corporation” means the mayor aldermen and citizens of the city;

“The Company” means the Winchester Electric Light and Power Company Limited;

“The town clerk” and “the city treasurer” mean respectively the town clerk and the city treasurer of the city;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the city;

“The Order of 1895” means the Winchester Electric Lighting Order 1895 confirmed by the Electric Lighting Orders Confirmation (No. 3) Act 1895;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of

the Corporation and rates or contributions leviable by or on the order or precept of the Corporation; A.D. 1911.

“The deed of transfer” means the indenture dated the seventh day of October one thousand eight hundred and ninety-seven referred to in the preamble to this Act;

“The scheduled agreement” means the agreement dated the first day of February one thousand nine hundred and eleven and made between the Company of the one part and the Corporation of the other part as set forth in the Fifth Schedule to this Act;

“The undertaking of the Company” means the premises by the scheduled agreement agreed to be sold by the Company to the Corporation;

“The date of the transfer” means the date on which the purchase is completed and the undertaking of the Company is transferred to the Corporation in pursuance of the scheduled agreement;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

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A.D. 1911.

Terms to which meanings are assigned by the Acts wholly or partially incorporated with this Act have the same respective meanings unless varied by this Act or unless there is something in the subject or context repugnant to such construction and in the Acts so incorporated with this Act the expressions "the undertakers" and "the promoters of the undertaking" shall for the purposes of this Act mean the Corporation.

TRANSFER OF UNDERTAKING.

Confirmation of scheduled agreement.

4. The scheduled agreement is hereby confirmed and made binding upon the parties thereto and those parties respectively shall be at liberty to exercise all necessary powers for carrying the same into effect.

Vesting of undertaking of Company in Corporation.

5.—(1) As from the date of the transfer the undertaking of the Company shall by virtue of this Act be transferred to and vested in the Corporation.

(2) The production of a King's Printer's copy of this Act duly stamped together with a receipt for the purchase money purporting to be signed by three directors of the Company or by the cashier of the Bank of England shall (unless it be proved that such purchase money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Corporation of the undertaking of the Company.

Corporation may carry on undertaking of Company after transfer.

6. The Corporation may after the date of the transfer maintain continue renew extend alter discontinue and carry on the undertaking of the Company and all or any works and things comprised therein and may employ the same for the purposes of and in connexion with the supply of electrical energy under this Act.

Receipt for purchase money.

7. The receipt in writing of three directors of the Company for any money paid or to be paid to the Company by the Corporation under the scheduled agreement shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss misapplication or non-application thereof Provided that if from any cause the Corporation are unable to obtain such receipt they may pay the money into the Bank of England in the name of the Paymaster-General for and

on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Corporation by the cashier of the said bank for the money which shall have the same effect as the receipt of three directors of the Company. A.D. 1911.

8. Subject to the provisions of the scheduled agreement all agreements contracts conveyances deeds and other instruments affecting the undertaking of the Company and in force at the date of the transfer shall as from that date be as binding and of as full force and effect against or in favour of the Corporation and may be enforced as fully and effectually as if instead of the Company the Corporation had been a party thereto. Contracts of Company to be binding on Corporation.

9. If at the date of the transfer any action or proceeding or any cause of action or proceeding is pending or existing by or against or in favour of the Company in relation to the undertaking of the Company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer of the undertaking of the Company to the Corporation or of anything in this Act but subject to the provisions of the scheduled agreement the same may be continued prosecuted and enforced by or against or in favour of the Corporation as and when it might have been continued prosecuted and enforced by or against or in favour of the Company if this Act had not been passed. Pending actions &c.

10. All books and documents which if the undertaking of the Company had not been transferred to the Corporation would have been evidence in respect of any matter for or against the Company shall as from the date of the transfer be admitted in evidence in respect of the same or the like matter for or against the Corporation. Books and documents to remain evidence.

11. As from the date of the transfer the Order of 1895 and so much of the Electric Lighting Orders Confirmation (No. 3) Act 1895 as relates thereto is hereby repealed. Repeal of Order of 1895.

12. The Corporation shall forward to the registrar of joint stock companies a printed copy of this Act and it shall be recorded by him and if such copy is not forwarded within three months from the passing of this Act the Corporation shall incur a penalty not exceeding forty shillings for every day after the expiration of those three months during which the copy is Copy of Act to be registered.

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A.D. 1911. omitted to be forwarded and every penalty shall be recovered summarily There shall be paid to the registrar by the Corporation on such copy being registered the like fee as is for the time being payable under the Companies (Consolidation) Act 1908 on registration of any document other than a memorandum of association.

SUPPLY OF ELECTRICITY.

Undertakers. **13.** The undertakers for the purposes of this Act and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Corporation.

Commencement of Act. **14.** Except so far as regards the confirmation of the scheduled agreement this Act shall take effect as from the date of the transfer and that date shall for the purposes of the Electric Lighting (Clauses) Act 1899 be the commencement of this Act.

Generating station. **15.** The Corporation may maintain repair extend and use the works for generating electricity upon the lands or part of the lands described in the Third Schedule to this Act and the provisions of section 81 of the Electric Lighting (Clauses) Act 1899 shall not apply in regard to such lands or to any works thereon.

Area of supply. **16.** The area of supply for the purposes of this Act and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Act.

Power to lay mains in private roads. **17.** The Corporation may upon the application of the owner or occupier of any premises abutting on or being erected in any street laid out but not repairable by the inhabitants at large supply such premises with electrical energy and may lay down take up alter relay or renew in across or along such street such mains wires and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Electric Lighting Act 1882 and the Electric Lighting (Clauses) Act 1899 with respect to the breaking up of streets for the purpose of laying mains so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Maximum prices. **18.** The maximum prices which may be charged by the Corporation as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 as amended by section 10

of the Electric Lighting Act 1909 are those stated in the Second Schedule to this Act. A.D. 1911.

19.—(1) The Corporation shall so soon as the annual statement of accounts of their electrical undertaking has been filled up in the form prescribed by the Board of Trade under the Electric Lighting Act 1882 publish in a newspaper circulating in the city a notification that such statement of accounts has been filled up and that copies of it can be obtained at the offices of the Corporation at a price not exceeding one shilling a copy and such publication shall be in addition to and not in substitution for any publication prescribed by the Board of Trade under the Electric Lighting Act 1882.

Revision of prices so as to balance revenue and expenditure.

(2) The Corporation shall on the expiration of the third complete financial year after they have commenced to supply electrical energy under this Act and on the expiration of each third succeeding year reconsider and if necessary revise and thereafter maintain the scales of prices charged for electrical energy under this Act so that so far as is reasonably practicable no contribution from the rates of the city will be required for the purpose of defraying the future expenses of the said undertaking during the next three years. Provided nevertheless that—

- (A) The prices to be charged shall not exceed the maximum prices which may be charged under this Act;
- (B) The scales of prices so reconsidered and revised may be from time to time in like manner reconsidered and revised by the Corporation.

(3) Nothing in this section contained shall prevent the Corporation from entering into contracts for periods which may extend beyond the periods at which any revision may take place under the provisions of this section on special terms under special circumstances not applicable to ordinary consumers but each such contract shall provide that the price to be charged for energy supplied under such contract shall either—

- (A) Be subject to revision at the next triennial revision provided for in this section; or
- (B) Vary in the same proportion as the prices charged to ordinary consumers:

Provided that the Corporation shall not without their consent be required to accept any price lower than the minimum price mentioned in such contract.

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(4) There shall not be made against the district rate or any other rate (A) in respect of energy used by the Corporation for street lighting or other lighting purposes a charge at any higher rate than that made to consumers using energy for lighting for the like hours of supply or (B) in respect of energy used by the Corporation for any other municipal purpose a charge at any higher rate than that made to consumers using energy for similar purposes and for like hours of supply.

Attachment
of brackets
&c. to
buildings.

20. The Corporation may with the consent of the owner of any building wall or bridge attach to that structure such brackets lamps and apparatus as may be required for lighting any street in the city :

Provided that—

(1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a court of summary jurisdiction who shall have power having regard to the character of the building and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable in the circumstances or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(2) Any consent of an owner and any order of a court of summary jurisdiction under this section shall not have effect after the owner ceases to be in possession of the structure but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the court of summary jurisdiction shall have the same powers as under proviso (1) :

(3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the structure.

For the purpose of this section any occupier of a structure whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rackrent shall be deemed to be the owner. A.D. 1911.

21.—(1) The Corporation may provide let for hire and fix repair and remove but shall not manufacture lamps meters electric lines fuses switches fittings lamp-holders motors and other fittings for lighting and motive power and for all other purposes for which electrical energy can or may be used and may provide all materials and work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon. Electrical fittings.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of law or proceedings in bankruptcy against the person in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

(3) Provided as follows:—

(a) The Corporation shall so adjust the charges to be made by them for any such fittings or for the fixing repairing or removal thereof as to meet any expenditure by them under the powers of this section in connexion therewith (including interest upon moneys borrowed for those purposes and all sums applied to sinking fund for repayment of moneys so borrowed):

(b) Every sum charged by the Corporation to a consumer in respect of the provision of such fittings or the fixing repairing or removal thereof shall be separately stated on every demand note delivered by the Corporation to the consumer:

(c) The total sums expended and received by the Corporation in connexion with the purposes in this section mentioned in each year (including interest and sinking fund) shall be separately shown in the published accounts of the electricity undertaking of the Corporation for that year.

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A.D. 1911.

ACQUISITION OF LANDS.

Acquisition
of lands.

22. Subject to the provisions of this Act the Corporation may enter upon take and use by compulsion or agreement such of the lands shown on the deposited plans and described in the deposited book of reference as they may require for the purposes of this Act or in connexion therewith.

Period for
compulsory
purchase of
lands.

23. The powers of the Corporation for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the passing of this Act.

Power to
retain sell
&c. lands.

24. Notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit and may from time to time sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they think fit and in case of sale either in consideration of the execution of works or the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest in any lands acquired by them under this Act or any other Local Act (other than lands vested in the Corporation for the purposes of the Education Acts 1870 to 1909) and may sell and exchange and dispose of any rents reserved on the sale exchange lease or disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

FINANCE.

Power to
borrow.

25. The Corporation may independently of any other borrowing power from time to time borrow at interest on the security of the revenue of the electric lighting undertaking of the Corporation and the district fund and general district rate any sum or sums of money not exceeding the sums hereinafter mentioned for the following purposes (that is to say):—

- (A) For the purchase of the undertaking of the Company and defraying the costs and expenses incident to such purchase and to the transfer of the undertaking to the Corporation such sum as may be necessary for the purpose;

(B) For the extension of the undertaking of the Company after the transfer and the construction and provision of mains works fittings and apparatus and for working capital in relation to the electric lighting undertaking of the Corporation the sum of twenty thousand pounds ;

(c) For the payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is "Costs of Act" the sum ascertained as in that section provided ;

and with the consent of the Local Government Board such further sums as may be necessary for any of the purposes of the electric lighting undertaking of the Corporation :

Provided that the provisions of this section shall not limit the powers conferred upon the Corporation by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

26. In calculating the amount which the Corporation may borrow under the provisions of the Public Health Acts any sums which the Corporation may borrow under or for the purposes of this Act shall not be reckoned and the power of the Corporation of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

Certain provisions of Public Health Act not to apply.

27. The Corporation may raise all or any moneys which they are authorised to borrow or re-borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Mode of raising money.

28. The provisions of sections 236 237 and 238 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall (subject to the provisions of the section of this Act the marginal note of which is "Power

Provision as to mortgages.

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A.D. 1911. — to use one form of mortgage for all purposes”) apply in the case of all mortgages granted by the Corporation under this Act as if they were with necessary modifications re-enacted in this Act.

Protection of
lenders from
inquiry.

29. A person lending money to the Corporation shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Repayment
of borrowed
money.

30. All moneys borrowed by the Corporation under the authority of this Act shall be paid off within the periods hereinafter respectively mentioned (in this Act referred to as “the prescribed period”) (that is to say):—

As to moneys borrowed for the purposes (A) in the section of this Act whereof the marginal note is “Power to borrow” within forty years from the date or dates of borrowing the same;

As to moneys borrowed for the purposes (B) in the said section mentioned within twenty years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (C) in the said section mentioned within five years from the passing of this Act;

and with respect to moneys borrowed by the Corporation under the authority of this Act with the consent of the Local Government Board within such period not exceeding sixty years as that Board may prescribe.

Mode of pay-
ment off of
money bor-
rowed.

31. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

32.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either— A.D. 1911.
Sinking
fund.

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called “a non-accumulating sinking fund”; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called “an accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investment of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investment of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation:

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(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local

Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct. A.D. 1911.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Corporation with the consent of the Local Government Board may determine.

33.—(1) The city treasurer shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised under any statutory borrowing power and not raised by the issue of Corporation stock and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the city treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such a return the city treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Return to
Local Government
Board as to
repayment
of debt.

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(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set aside any sum required for any sinking fund (whether such instalment or annual payment or sum is required by the Act in pursuance of which the moneys are raised or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Appoint-
ment of re-
ceiver.

34.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

35.—(1) The Corporation shall have power—

(A) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or

(B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

A.D. 1911.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) by instalments or annual payments; or
- (B) by means of a sinking fund; or
- (C) out of moneys derived from the sale of land; or
- (D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

36.—(1) Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of—

Power to use sinking fund instead of borrowing.

- (A) a loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or
- (B) moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is “Power to use one form of mortgage for all purposes” and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

[Ch. lxvii.] *Winchester Corporation (Electric [1 & 2 GEO. 5.] Supply) Act, 1911.*

A.D. 1911.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(A) withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(B) credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

(C) debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

Power to use one form of mortgage for all purposes.

37.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and place of payment and shall be sealed with the common seal of the Corporation and may be made in the form contained in the Fourth Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank A.D. 1911.
equally without any priority or preference by reason of any
precedence in the date of any statutory borrowing power or in
the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment
of interest thereon secured by mortgages granted under this
section shall be and the same are by virtue of this Act charged
indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect
the obligations of the Corporation to provide for the repayment
of the principal sums and interest secured by mortgages granted
under this section and all such sums and interest shall be paid
within the periods by the means and out of the funds rates
or revenues within by and out of which they would have been
payable respectively if this section had not been enacted.

(6) There shall be kept at the office of the Corporation a
register of the mortgages granted under this section and within
fourteen days after the date of any such mortgage an entry shall
be made in the register of the number and date thereof and of
the names and descriptions of the parties thereto as stated in
the deed. Every such register shall be open to public inspection
during office hours at the said office without fee or reward and
the town clerk or other person having the custody of the same
and refusing to allow such inspection shall be liable to a penalty
not exceeding five pounds.

(7) Any mortgagee or other person entitled to any mortgage
granted under this section may transfer his estate and interest
therein to any other person by deed duly stamped truly stating
the consideration and such transfer may be according to the
form contained in the Fourth Schedule to this Act or to the
like effect.

(8) There shall be kept at the town clerk's office a register
of the transfer of mortgages granted under this section and
within thirty days after the date of every deed of transfer if
executed within the United Kingdom or within thirty days after
its arrival in the United Kingdom if executed elsewhere the
same shall be produced to the town clerk who shall on payment
of a sum not exceeding five shillings cause an entry to be made
in such register of its date and of the names and descriptions
of the parties thereto as stated in the deed of transfer and until

[Ch. lxvii.] *Winchester Corporation (Electric Supply) Act, 1911.* [1 & 2 GEO. 5.]

A.D. 1911. such entry is made the Corporation shall not be in any manner responsible to the transferee.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(10) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

Application
of money
borrowed.

38. All money borrowed under the provisions of this Act shall be appropriated to purposes for which it is authorised to be borrowed and shall be expended exclusively on works or objects on which capital may properly be expended.

Corporation
not to regard
trusts.

39. The Corporation shall not be bound to see to the execution of any trust whether express or implied or constructive to which any loan or security for loan borrowed given or issued by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Corporation
may appoint
auditors.

40. The Corporation may from time to time appoint and pay one or more persons being members of the Institute of Chartered Accountants in England and Wales or of the Incorporated Society of Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation in addition to the auditors appointed under the Municipal Corporations Act 1882.

MISCELLANEOUS.

A.D. 1911.

41. Where in any legal proceedings taken by or on behalf of the Corporation whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or to prove any resolution of the Corporation or of any committee of the Corporation a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the mayor or the town clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Evidence of
appoint-
ments &c.

42. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands in
county court.

43.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as inspectors of the Local Government Board have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries
by Local
Government
Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

44. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act

Saving for
indictments.

[Ch. lxvii.] *Winchester Corporation (Electric [1 & 2 Geo. 5.] Supply) Act, 1911.*

A.D. 1911. — Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Judges not disqualified.

45. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Crown rights.

46. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Costs of Act.

47. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act (including the costs charges and expenses preliminary to and of and connected with the compliance with the provisions of the Borough Funds Acts 1872 and 1903 with respect to the Bill for this Act) or otherwise in relation thereto as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of moneys borrowed under the powers of this Act.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

AREA OF SUPPLY.

The city of Winchester and the parishes of Compton Twyford Weeke Without and Abbot's Barton and so much of the parishes of Chilcomb Easton Littleton Headbourne Worthy and Kings Worthy as lies within a radius of two miles from the City Cross Winchester.

THE SECOND SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

[1 & 2 GEO. 5.] *Winchester Corporation (Electric Supply) Act, 1911.* [Ch. lxvii.]

SECTION 1.

A.D. 1911.

Where the Corporation charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

SECTION 2.

Where the Corporation charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Corporation under the Board of Trade regulations.

THE THIRD SCHEDULE.

LANDS FOR GENERATING STATION.

A piece of land situate in the city comprising an area of one acre and three roods or thereabouts and having a frontage to King Alfred Terrace and Gordon Terrace and now being in the occupation of the Company and used for and in connexion with their generating station.

THE FOURTH SCHEDULE.

FORM OF MORTGAGE.

CITY OF WINCHESTER.

By virtue of the Winchester Corporation (Electric Supply) Act 1911 and of any other powers in that behalf them enabling the mayor aldermen and citizens of the city of Winchester (herein-after called "the Corporation") in consideration of the sum of

[Ch. lxvii.] *Winchester Corporation (Electric [1 & 2 GEO. 5.] Supply) Act, 1911.*

A.D. 1911. pounds paid to the city treasurer by (herein-after called "the mortgagee") do hereby grant and assign unto the mortgagee (his) executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the said sum of £. so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee (his) executors administrators and assigns from the day of the date of these presents until the said sum of shall be fully paid and satisfied with interest for the same at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half-yearly on the thirty-first day of March and the thirtieth day of September in each year And it is hereby agreed that the said principal sum of pounds shall be repaid at the office of the city treasurer on the day of one thousand nine hundred and :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the mayor and town clerk for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their common seal to be hereunto affixed this day of one thousand nine hundred and .

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named consenting the within-mentioned time for repayment of the within-mentioned principal sum of is hereby extended to the day of one thousand nine hundred and (and the interest to be paid thereon on and from the day of one thousand nine hundred and is hereby declared to be at the rate of per centum per annum).

Dated this day of one thousand nine hundred and

FORM OF TRANSFER OF MORTGAGE.

A.D. 1911

I (the within-named _____ of _____) in consideration of the sum of _____ pounds paid to me by _____ of _____ (herein-after called "the transferee") do hereby transfer to the transferee (his) executors administrators and assigns (the within-written security) (the mortgage number _____ of the revenues of the Winchester Corporation bearing date the _____ day of _____) and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this _____ day of _____ one thousand nine hundred and _____

THE FIFTH SCHEDULE.

AGREEMENT FOR SALE OF THE UNDERTAKING OF THE COMPANY.

THIS AGREEMENT made the first day of February one thousand nine hundred and eleven between the Winchester Electric Light and Power Company Limited (herein-after called "the Company") of the one part and the Mayor Aldermen and Citizens of the City of Winchester (herein-after called "the Corporation") of the other part.

WHEREAS under and by virtue of the Winchester Electric Lighting Order 1895 confirmed by the Electric Lighting Orders Confirmation (No. 3) Act 1895 (herein-after called "the Order of 1895") the Corporation were authorised to supply electrical energy for all public and private purposes within the city of Winchester as it was then constituted and to construct works for the purposes of and in connexion with such supply :

And whereas by an indenture dated the seventh day of October one thousand eight hundred and ninety-seven and made between the Corporation of the one part and the Company of the other part all the rights duties and liabilities of the Corporation under the Order of 1895 were transferred to the Company for a period of forty-two years from the date of the said indenture :

[Ch. lxvii.] *Winchester Corporation (Electric [1 & 2 Geo. 5.]
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A.D. 1911.

And whereas it was provided by clause eighteen of the said indenture that the Corporation should have the right on giving twelve months' notice to purchase the undertaking of the Company at any time subject to certain terms mentioned in the said indenture and that the price to be paid by the Corporation should in default of agreement be settled by arbitration :

And whereas on the twentieth day of January one thousand nine hundred and ten the Corporation in pursuance of the said provision of the said indenture gave twelve months' notice to the Company of their intention to purchase the undertaking referred to in the said indenture and proceedings are now pending between the parties hereto for the ascertainment of the price of the said undertaking by arbitration in manner provided by the said indenture :

And whereas the boundary of the said city was extended by the Winchester Order 1900 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 9) Act 1900 :

And whereas the Company have constructed works and are supplying electrical energy both within the said city as constituted at the commencement of the Order of 1895 and also within the area added to the said city by the said Order of 1900 :

And whereas the Company in connexion with the supply of electrical energy aforesaid have provided wiring fittings motors and other apparatus for use on the premises of consumers supplied by them and entered into contracts with respect to the provision of such apparatus and the Corporation contend and the Company do not admit that the Order of 1895 contains no authority for that purpose.

Now it is hereby agreed between the parties hereto as follows :—

1. The Company shall sell to the Corporation and the Corporation shall purchase free from all encumbrances the whole undertaking of the Company as the same existed on the thirty-first day of December one thousand nine hundred and ten including all the real and personal property of the Company whether situate within or without the area of supply under the Order of 1895 and the benefit of all contracts or arrangements of the Company for the supply of electrical energy or for the free-wiring of the premises of consumers or for the provision of wiring fittings motors or other apparatus and such other contracts of the Company as are mentioned in the schedule to this agreement and all other the rights powers privileges assets and effects of the Company excepting only—

(a) the books and documents relating exclusively to the shareholders in and the constitution of the Company

or to any contracts or property not taken over by the Corporation; A.D. 1911.

(b) cash in hand and at any bank;

(c) investments of money in stocks and shares;

(d) debts due or accruing to the Company on the thirty-first day of December one thousand nine hundred and ten (for which purpose any current accounts shall be apportioned as on that date); and

(e) all moneys payable to the Company under this agreement:

Provided that the Corporation shall not be entitled to any of the books and accounts of the Company relating to any period prior to the said thirty-first day of December until after the affairs of the Company have been wound up but until the completion of such winding up the Corporation shall be entitled to such access as they may reasonably require to the said books and accounts save any that are excepted from the purchase as herein-before provided:

For the purpose of the provisions herein-after contained the undertaking of the Company is not to be deemed to include the excepted properties.

2. The price payable by the Corporation to the Company for the purchase of the premises so agreed to be sold shall be the aggregate of—

(a) the sum of ninety-one thousand pounds;

(b) a sum equal to the amount actually and properly expended by the Company on their said undertaking for capital purposes and whether so expended within or without the area of supply under the Order of 1895 between the thirtieth day of June one thousand nine hundred and ten and the thirty-first day of December one thousand nine hundred and ten; and

(c) a sum equal to the actual cost price to the Company of the stock of coal oil and other stores of the Company in connexion with the said undertaking on the said thirty-first day of December one thousand nine hundred and ten;

but subject to deduction from the said aggregate of any amounts received or receivable by the Company for sales of any property other than coal oil or other stores sold by the Company between the said thirtieth day of June and the said thirty-first day of December which property if not so

[Ch. lxvii.] *Winchester Corporation (Electric [1 & 2 GEO. 5.] Supply) Act, 1911.*

A.D. 1911. sold would have been included in the purchase by the Corporation under this agreement and the amount so actually and properly expended by the Company and the said actual cost price and the amounts (if any) so received by the Company shall be certified in writing by Charles Hesterman Merz of 28 Victoria Street Westminster or if he is unable to act by some fit person appointed for the purpose by the Board of Trade and the certificate so given shall be final and binding on both parties.

3. Until the date of transfer herein-after referred to the Company shall continue to work their undertaking and as from the thirty-first day of December one thousand nine hundred and ten they shall work the same as economically as is reasonably possible and in an efficient manner to the reasonable satisfaction of the said Charles Hesterman Merz and shall use their best endeavours to obtain further consumers and to carry on the undertaking as a commercial success.

4. The Company shall be entitled to all revenue from their undertaking down to the close of the thirty-first day of December one thousand nine hundred and ten and shall discharge and indemnify the Corporation against all liabilities incurred in relation to their undertaking down to the same date. As from the said thirty-first day of December one thousand nine hundred and ten the Corporation shall be entitled to all revenue from the undertaking of the Company and shall bear and discharge and indemnify the Company against all expenses outgoings and liabilities (other than interest on borrowed moneys) properly incurred by the Company whether on capital or revenue account in carrying on the said undertaking. For the purpose of this clause all necessary apportionments of revenue expenses outgoings and liabilities shall be made as if the same accrued from day to day. Upon completion of the purchase an account shall be taken of all moneys due to or from the Company under this clause and the balance thereof shall be added to or deducted from the purchase money as the case may require.

5. The Corporation shall on the completion of the purchase pay to the Company interest on the price payable under clause 2 hereof at the rate of five per cent. per annum from the thirty-first day of December one thousand nine hundred and ten to the actual payment of such price and also interest at the same rate upon every sum expended by the Company

[1 & 2 GEO. 5.] *Winchester Corporation (Electric Supply) Act, 1911.* [Ch. lxvii.]

after the said thirty-first day of December one thousand nine hundred and ten upon capital account in carrying on the said undertaking in accordance with this agreement from the date of the expenditure thereof until the payment of such sum to the Company. A.D. 1911.

6. As from the said thirty-first day of December one thousand nine hundred and ten the Company shall at all times afford to the said Charles Hesterman Merz or other the electrical engineer for the time being of the Corporation or to a representative duly authorised by him for the purpose all facilities for inspecting and inquiring into the operation and running of the undertaking of the Company and the carrying out of any new works in connexion therewith.
7. The date of transfer herein-before referred to shall be such date within three months after the passing of the Bill in Parliament herein-after mentioned as shall be fixed by the Corporation by not less than fourteen days previous notice in writing to the Company and upon the said date the purchase shall be completed and possession of the premises hereby agreed to be sold shall be given by the Company to the Corporation and the purchase price and other moneys payable under this agreement shall be paid by the Corporation to the Company and the Company and all other necessary parties (if any) shall at the expense of the Corporation execute and do all such assurances and things as shall be reasonably required by the Corporation for vesting the said premises in the Corporation (so far as the same shall not be vested in them by virtue of the passing of the Bill in Parliament herein-after mentioned) and for giving to the Corporation the full benefit of this agreement.
8. The pending arbitration proceedings herein-before mentioned shall forthwith be suspended and the fees of Archibald Read the arbitrator appointed by the Board of Trade for the purposes thereof up to the date hereof shall be paid as to one half thereof by the Company and as to the other half thereof by the Corporation and if this agreement shall be confirmed by Parliament as herein-after mentioned the said proceedings shall be entirely discontinued and the said parties respectively shall pay their own additional costs of the said proceedings.
9. This agreement (other than clause 12 hereof) is made subject to confirmation by Parliament under a Bill to be promoted by the Corporation in the session of 1911 and subject to

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such alterations if any as Parliament may think fit to make therein Provided that if the Committee of either House of Parliament to whom the said Bill may be referred shall make any material alteration in this agreement it shall be competent to either of the parties hereto to withdraw the same and (save as to clause 12 hereof) to determine the same before the said Bill receives the Royal Assent.

10. The Company shall if required by and at the expense of the Corporation support the Corporation in the promotion of the said Bill so far as the same relates to the confirmation of this agreement.

11. If any difference shall arise between the parties hereto with respect to the construction of this agreement or anything therein contained or provided for such difference shall be referred to the arbitration of the said Archibald Read or failing him by a single arbitrator to be appointed by the Board of Trade on the application of either party.

12. If this agreement shall not be confirmed by Parliament during the session of 1911 the said arbitration proceedings shall be revived and continued as if this agreement had not been made and the sum paid by each party hereto in respect of the fees of the said Archibald Read under clause 8 hereof shall be deemed to form part of the costs of such party in the said proceedings.

The SCHEDULE.

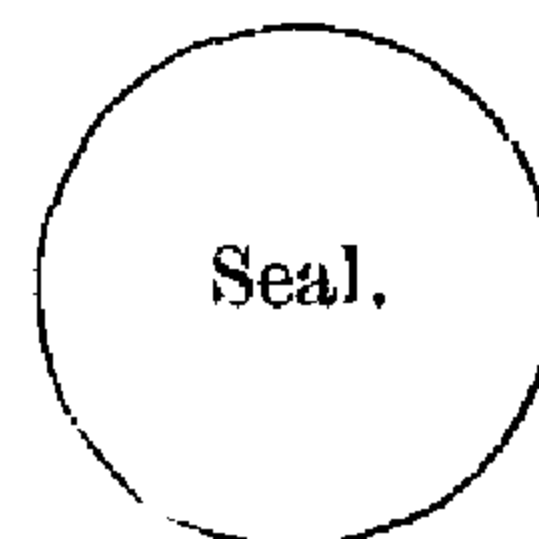
Date of Contract.	Contract made with	Subject.	Terms.
June 8 1898	W. Barrow Simonds	Lease of land	999 years.
Mar. 20 1902	Fine Art Insurance Co.	-	Annual.
Jan. 13 1903	W. Barrow Simonds	Lease of land	999 years.
Aug. 10 1903	Tudor Accumulator Co.	Maintenance	Expires 1913.
July 4 1905	Ocean Insurance Co.	-	Annual.
Oct. 12 1906	G. Stillman	Wayleave 6d.	3 months' notice.
Oct. 16 1906	Earl of Northbrook	Lease of offices	Expires 1913.
Oct. 18 1906	Ocean Insurance Co.	-	Annual.
Oct. 18 1906	Hospital of St. Cross	Wayleave 1s.	Annual.
Sept. 20 1907	Ocean Insurance Co.	-	Annual.
Mar. 21 1908	National Telephone Co.	-	Annual.
July 11 1908	Winchester Corporation	Wayleave 1l.	Annual.

[1 & 2 GEO. 5.] *Winchester Corporation (Electric Supply) Act, 1911.* [Ch. lxvii.]

Date of Contract.	Contract made with	Subject.	Terms.	A.D. 1911.
Oct. 6 1908	Ocean Insurance Co.	- - -	- Annual.	
Jan. 1 1909	National Telephone Co.	- - -	- Annual.	
Jan. 28 1909	Do. do.	- - -	- Annual.	
Dec. 31 1909	Union Insurance Co.	- - -	- Annual.	
Jan. 18 1910	R. G. Gifford	- Coal contract	- Expires May 30th 1911.	

In witness whereof the parties hereto have hereunto set their seals the day and year first above written.

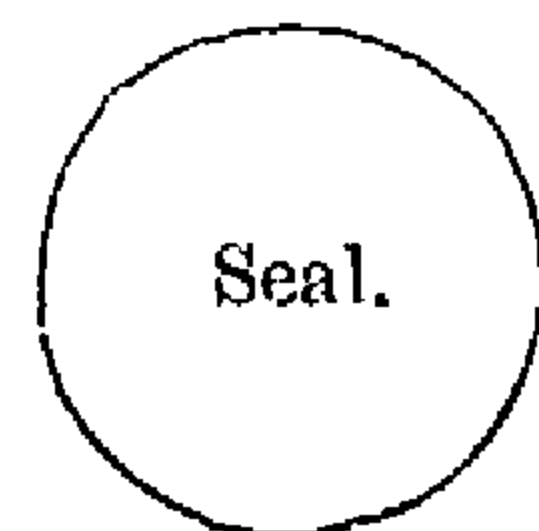
The common seal of the Winchester Electric Light and Power Company Limited was hereunto affixed in the presence of



F. E. GRIPPER
E. MITCHELL
ARTHUR R. DYER } Directors.

H. N. WARBURTON Secretary.

The common seal of the Mayor Aldermen and Citizens of the city of Winchester was hereunto affixed in the presence of



F. S. FURLEY Mayor.
THOMAS HOLT Town Clerk.

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